

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

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ALOMA CRAWFORD FASON, as Administratrix
of the Estate of ROBERT FASON, and ALOMA
CRAWFORD FASON, Individually,

Plaintiffs designate
Kings County as the
Place of trial

Plaintiffs,

-against-

Basis of venue is
Location of incident

SUMMONS

THE CITY OF NEW YORK,
NYPD PATROL OFFICER ROBERT ANTON and
NYPD PATROL OFFICER LISA LOVELL,

Aloma Crawford Fason resides at:
565 Mother Gaston Blvd.
Brooklyn, New York 11212

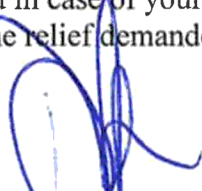
Defendants.

-----X County of Kings

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 15, 2019



Andrew M. Laskin, Esq.
ROBINSON & YABLON, P.C.
Attorneys for Plaintiffs
232 Madison Avenue, Suite 909
New York, New York 10016
(212) 725-8566

TO:

The City Of New York
100 Church Street
New York, New York 10007

NYPD P.O. Robert Anton
73rd Precinct
1470 E. New York Avenue
Brooklyn, New York 11212

NYPD P.O. Lisa Lovell
73rd Precinct
1470 E. New York Avenue
Brooklyn, New York 11212

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ALOMA CRAWFORD FASON, as Administratrix
of the Estate of ROBERT FASON, and ALOMA
CRAWFORD FASON, Individually,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD PATROL OFFICER ROBERT ANTON and
NYPD PATROL OFFICER LISA LOVELL,

Defendants.

-----X
Plaintiffs, The Estate of Robert Fason by its Administratrix, ALOMA CRAWFORD
FASON, and ALOMA CRAWFORD FASON, Individually, by her attorneys, ROBINSON &
YABLON, P.C., complaining of the Defendants, alleges as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ALOMA CRAWFORD FASON has resided at 565 Mother Gaston Boulevard, Brooklyn, New York. She brings this action individually and as the Administratrix of the Estate of Robert Fason (hereinafter "Robert Fason" or the "Decedent"), who died on June 30, 2018. ALOMA CRAWFORD FASON was duly appointed the Administratrix of the Decedent's estate on August 20, 2018 by the Kings County Surrogate.

2. The defendant, CITY OF NEW YORK (hereinafter the “City”) was, at all times hereinafter, a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department (the “NYPD”) which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the NYPD.

3. At all times herein alleged, PATROL OFFICER ROBERT ANTON was and still is a duly appointed NYPD police officer employed by the City.

4. At all times herein alleged, PATROL OFFICER LISA LOVELL was and still is a duly appointed NYPD police office employed by the City.

5. All causes of actions set forth herein have been commenced within the applicable statute of limitations governing such claims under state law.

6. A Notice of Claim was duly served upon the Defendants on or about July 12, 2018, within 90 days after Plaintiffs’ claims arose, pursuant to General Municipal Law Section 50-e. Plaintiff ALOMA CRAWFORD FASON submitted to a 50-h Hearing on March 5, 2019.

7. Despite service of the Notice of Claim, Defendants have refused to make adjustment or payment and more than 90 days have elapsed since the Notice of Claim was presented.

8. Plaintiffs seek damages, both compensatory and punitive, an award of costs and attorneys' fees, and such other relief as the Court may deem just.

FACTS

9. On June 30, 2018, at approximately 3:25 a.m., the decedent and a friend were in front of 1611 Broadway, Brooklyn, New York when gunshots were fired. At least one of those gunshots struck the decedent.

10. Years before those gunshots rang out, in March 2015, the City touted its new "ShotSpotter" system, a technological achievement which was designed to ensure that when gunshots were fired in the City, they would no longer go unheard.

11. In 2015, the City claimed that ShotSpotter was to be used in conjunction with NYPD's Joint Operations Center, precinct commands, and the 911 system to detect crimes and respond to them with pinpoint accuracy.

12. On June 30, 2018, the City had a duty to train its NYPD officers and its NYPD divisions to coordinate, prepare and execute joint and focused efforts in response to 911 calls in “shots fired” situations.

13. The City further had a duty to train its NYPD officers and NYPD divisions how to execute and perform inter-precinct emergency response efforts so as to ensure coordinated and prompt responses in situations in which citizens lives were in peril.

14. The events which transpired on June 30, 2018 underscore the failures of the City’s NYPD in its training and coordination of resources, and the reckless and unconstitutional acts of its patrol officers who allowed an injured man to die without even exiting their radio motor patrol to render him aid.

15. On June 30, 2018 the City’s “ShotSpotter” system detected that gunshots had been fired in front of 1611 Broadway, Brooklyn, New York.

16. The decedent, injured by gunfire at the above referenced location, hobbled from the scene, leaving a trail of blood.

17. In the course of his route, the plaintiff-decedent, passed from the NYPD’s 81st Precinct to the 73rd Precinct.

18. Injured and screaming in pain, the Decedent fought his way to the front of 693 Decatur Street, Brooklyn, New York.

19. The noise from plaintiff-decedent, Robert Fason's frantic screams promoted a neighbor or to call 911. The 911 caller alerted plaintiff-decedent, Robert Fason of the call and that emergency personnel were coming to his aid.

20. Defendant NYPD Patrol Officers Anton and Lovell were dispatched to the scene of the referenced 911 call. As they rolled their NYPD patrol vehicle along Decatur Street, plaintiff-decedent, Robert Fason was alive, knowing the police had been called and assuming help was on the way to him.

21. Officers Anton and Lovell never exited their radio motor patrol. They did not look for the trail of blood which was in plain view.

22. The Defendant NYPD Patrol Officers did not listen for plaintiff-decedent, Robert Fason's frantic screams or use their turret lighting to look for him although he was there to be seen. Instead, they radioed that the 911 call was unwarranted, and drove off.

23. Hours later, after sunrise, plaintiff-decedent, Robert Fason was found by other NYPD Officers in front of 693 Decatur Street, Brooklyn, New York. He had bled painfully to death, never having received the aid, which the defendants were required by law to provide.

24. The City suspended defendants Anton and Lovell in the aftermath of plaintiff-decedent, Robert Fason's death.

25. The City and the NYPD collectively failed to save an injured man, to wit: plaintiff-decedent, Robert Fason, leaving him to die, despite having the personnel, resources, duty and opportunities to do so.

FIRST CLAIM

26. Plaintiffs incorporate by reference the allegations set forth in the preceding paragraphs as if fully set forth herein.

27. By their acts and omissions as set forth above, the defendants increased the vulnerability of plaintiff-decedent, Robert Fason, amplified his danger and peril, and thereby wrongfully caused his death and deprived him of his rights thereby giving rise to a claim for damages for a state-created danger.

28. That by reason of the foregoing, plaintiffs have been damaged in an amount and sum exceeding the jurisdictional limits of all lower courts.

29. That this action falls within one or more of the exceptions set forth in CPLR §1602.

SECOND CLAIM

30. Plaintiffs incorporate by reference the allegations set forth in the preceding paragraphs as if fully set forth herein.

31. By failing to ensure that plaintiff-decedent, Robert Fason, was rendered aid long before he died and long after 911 was called, defendants lulled Decedent into a false sense of security, thereby placing him in a worse position than he would have been in had the Defendants not assumed a duty.

32. As a result of the foregoing, a special relationship existed between plaintiff-decedent, Robert Fason, and the defendants by which a duty of the defendants to act was triggered and not to ignore the plaintiff-decedent, Robert Fason's, peril. The breach of said duty proximately caused the wrongful death of plaintiff-decedent, Robert Fason.

33. That by reason of the foregoing, plaintiffs have been damaged in an amount and sum exceeding the jurisdictional limits of all lower courts.

34. That this action falls within one or more of the exceptions set forth in CPLR §1602.

THIRD CLAIM

35. Plaintiffs incorporate by reference the allegations set forth in the preceding paragraphs as if fully set forth herein

36. The acts and omission of defendants Anton and Lovell, who drove off without even exiting their radio motor patrol, shock the conscience and were offensive to human dignity.

37. That by reason of the foregoing, plaintiffs have been damaged in an amount and sum exceeding the jurisdictional limits of all lower courts.

38. That this action falls within one or more of the exceptions set forth in CPLR §1602.

FOURTH CLAIM

39. Plaintiffs incorporate by reference the allegations set forth in the preceding paragraphs as if fully set forth herein

40. Defendants Anton and Lovell acted negligently and with reckless disregard for the safety and welfare of plaintiff-decedent, Robert Fason, thereby causing his wrongful death.

41. That by reason of the foregoing, plaintiffs have been damaged in an amount and sum exceeding the jurisdictional limits of all lower courts.

42. That this action falls within one or more of the exceptions set forth in CPLR §1602.

FIFTH CLAIM

43. Plaintiffs incorporate by reference the allegations set forth in the preceding paragraphs as if fully set forth herein.

44. The City through its NYPD had a duty to train its officers, at the Patrol and Command levels, to interact and coordinate response efforts in shots fired situations and to utilize and deploy proper resources when ShotSpotter detected that gunshots had been fired.

45. The failure on the part of the defendants to so train NYPD Officers and Commands to provide necessary services in shots fired situations constitute a policy and practice subjecting the City to liability for plaintiff-decedent, Robert Fason's, wrongful death.

46. That by reason of the foregoing, plaintiffs have been damaged in an amount and sum exceeding the jurisdictional limits of all lower courts.

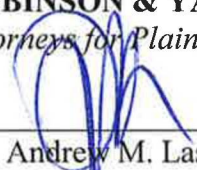
47. That this action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, plaintiffs, ALOMA CRAWFORD FASON, as the Administratrix of the Estate of ROBERT FASON, and ALOMA CRAWFORD FASON, Individually, demand judgment against the defendants, The City of New York, NYPD Patrol Officer Robert Anton and NYPD Patrol Officer Lisa Lovell, jointly and severally in an amount in excess of the jurisdictional limits of all lower Courts of the State of New York, together with interest, as well as, costs and disbursements of this cause of action.

Dated: New York, New York
July 15, 2019

ROBINSON & YABLON, P.C.

Attorneys for Plaintiffs



By: Andrew M. Laskin
232 Madison Avenue, Suite 909
New York, New York 10016
(212) 725-8566

VERIFICATION

Andrew M. Laskin, being duly sworn, says:

I am an attorney admitted to practice law before the courts of the State of New York and am a member of the firm ROBINSON & YABLON, P.C., the attorneys of record for Aloma Crawford Fason, as Administratrix of the Estate of Robert Fason, and Aloma Crawford Fason individually, plaintiff in the within action. I have read the contents of the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters said to be upon information and belief and as to those matters, I believe them to be true. My belief as to all matters not stated upon my knowledge are as follows: file maintained by ROBINSON & YABLON, P.C., and information supplied by the client. This verification is made by me because plaintiff resides in a county other than the county in which my office is located.

Affirmed: New York, New York
July 15, 2019



Andrew M. Laskin, Esq.

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Defendants.

SUMMONS AND VERIFIED COMPLAINT

ROBINSON & YABLON, P.C.

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